

SS 2043: Civics and Community Engagement

Week 5

Introduction

The vast majority of contemporary constitutions describe the basic principles of the state, the structures and processes of government and the fundamental rights of citizens in a higher law that cannot be unilaterally changed by an ordinary legislative act. This higher law is usually referred to as a constitution.

The content and nature of a particular constitution, as well as how it relates to the rest of the legal and political order, varies considerably between countries, and there is no universal and uncontested definition of a constitution. Nevertheless, any broadly accepted working definition of a constitution would likely describe it as a set of fundamental legal-political rules that:

1. are binding on everyone in the state, including ordinary law-making institutions,
2. concern the structure and operation of the institutions of government, political principles and the rights of citizens;
3. are based on widespread public legitimacy,
4. are harder to change than ordinary laws (eg a two-thirds majority vote or a referendum is needed); and
5. as a minimum, meet the internationally recognized criteria for a democratic system in terms of representation and human rights.

Fundamental of Constitution:

Constitutions can declare and define the boundaries of the political community.

Constitutions can declare and define the nature and authority of the political community.

Constitutions can express the identity and values of a national community.

Constitutions can declare and define the rights and duties of citizens.

Constitutions can establish and regulate the political institutions of the community.

Constitutions can divide or share power between different layers of government or sub-state communities.

Concept of Rights and Duties

Rights

Functional working mechanism of law is that it creates rights and duties of people. Every law empowers an individual to have a benefit while it imposes obligation on the other party to do their duties in honoring the rights. E.g; If there is a law for providing the citizenship of a country for the recognition of nationality of citizens then, Person has a right to citizenship and state has a duty to provide it.

Rights exist for the protection of the necessities of an individual in human world, unlike the struggle for existence and survival of the fittest theory in animal kingdom. Unlike animal, human beings are believed to

be born equal and they have an equitable rights in life and it's journey. It can be presumed that Rights are necessary for protection of human needs and desires of an individual in society.

Definitions

Rights are the valid claims of an individual that are accepted by society as necessary for personal growth and that of the society.

Rights can be considered as sets of facilities and privileges offered by the state to its citizens despite all odds.

Rights can also be defined as what is rightfully owed to an individual by the state.

a. Human Rights

Title: By virtue of birth.

Recognition: No recognition by laws or the state required.

Enforcement: International and National Framework.

Application: Universal

Human rights are moral principles or norms for certain standards of human behaviour and are regularly protected in municipal and international law. Human Rights are those rights that a person has valid claim to simply by the virtue of his being. They are equally available for those born as humans.

They are commonly understood as inalienable, fundamental rights to which a person is inherently entitled simply because she or he is a human being and which are inherent in all human beings, regardless of their age, ethnic origin, location, language, religion, ethnicity, or any other status. These rights need not be granted or recognized by the law, for they are available naturally to a person but the state is required to enforce them. Human Rights have a universal jurisdiction i.e, they are same for all human beings around the globe.

They are applicable everywhere and at every time in the sense of being universal, and they are egalitarian in the sense of being the same for everyone. They are regarded as requiring empathy and the rule of law and imposing an obligation on persons to respect the human rights of others, and it is generally considered that they should not be taken away except as a result of due process based on specific circumstances.

It arises from the 'Natural Rights Philosophy' which states that all men were born equal and thus they should be treated equal. Locke believed "Life, Liberty and Property" to be inalienable natural rights.

These rights are recognized by International Instruments such as;

Universal Declaration of Human Rights (UDHR) 1948

International Convention on Civil and Political Rights (ICCPR) 1966

International Convention on Economic Social and Cultural Rights (ICESCR) 1966

Convention on the Elimination of All Forms of Discrimination against Women (CEDAW) 1981

b. Fundamental Rights

Title: By promulgation of constitution.

Recognition: Constitutionally Guaranteed

Enforcement: Constitutional and legal remedies

Application: Territorial

Those rights which are recognized by the state as the basic necessities of a minimal life and guaranteed by the constitution such that even the underprivileged can have it is known as basic/ fundamental rights.

The idea behind constitutionally guaranteeing right is that even the government and those in power must not be able to encroach those rights. Courts have a special duty to uphold the fundamental rights and

protect them from encroachment by the political power.

Violation of Constitutional rights is remedied by the constitution itself. People can follow the laws made to enforce such rights to seek its application but if the state is not able to provide it or if the state violates such rights, writ jurisdiction can be sought.

c. Legal Rights

Title: By promulgation of laws

Recognition: Legally Provisioned

Enforcement: Legal remedies

Application: Territorial

Legal Rights are those rights that are provisioned by the law promulgated by a sovereign authority. Since, it is acted and passed by a national authority, it's application is also territorial.

State mechanism have a direct and indirect involvement in the provisioning of legal rights. State makes and enforces all the public laws but rights and duties are also created by individuals through their own interaction or contract, which is also enforceable through state.

Normal course of action is usually followed against legal wrong i.e, violation of legal rights. Unlike fundamental and human rights, writ jurisdiction is not entertained unless there is a immediate necessity to stop the legal wrongs.

Difference between Legal and Moral Rights

Basis of differentiation	Legal Rights	Moral Rights
Title	By virtue of law	By virtue of ethical circumstances
Recognition	Recognition comes from promulgated acts of parliament.	Recognition comes from the opinion of people.
Application	Territorial	No defined territory
Clarity	Clear and consolidated	Not clearly mentioned. Vague or ambiguous
Guided by	Positive Law	Natural Law
Violation is	Legal Wrong	Moral Wrong
Enforcement	Enforced by state	Enforced by society through public opinion

Rights of a Citizen of Pakistan:

Citizens have specific rights that protect them from harm, give them the freedom to act, and allow them to participate in their country's governance. These rights are essential for ensuring equality and justice in society. In Pakistan, the Constitution guarantees many rights to citizens.

The Constitution of Pakistan 1973 guarantees various fundamental rights to its citizens, listed from Article 8 to 40 (Part-1: Chapter 1: Fundamental Rights). These rights ensure the protection and welfare of citizens in different areas such as Equality, freedom, and justice. Let's go through

them one by one.

Overview of Fundamental Rights and Liberties of Citizens under Constitution of Pakistan 1973:

Article 8 establishes the supremacy of fundamental rights, stating that any law that is inconsistent with or derogatory to these rights shall be considered void.

Article 9: Security of person:

Article 10: Safeguards as to arrest and detention: provides safeguards regarding arrest and detention, emphasizing the right to be informed of the grounds for arrest and the right to legal representation. It also mandates the production of arrested persons before a magistrate within 24 hours.

Article 10 A: Right to Fair Trial, is a fundamental legal principle that guarantees individuals involved in legal proceedings the right to a fair, impartial, and just process. This right is typically enshrined in legal systems and international human rights instruments to ensure that all individuals, regardless of their circumstances, receive fair treatment under the laws

Article 11: Slavery, forced labour, etc, prohibition of slavery, forced labor, and similar practices is a fundamental principle enshrined in various international human rights instruments and national laws.

Article 12: Protection against Retrospective Punishment, also known as protection against ex post facto laws, is a fundamental principle in legal systems around the world. It refers to the prohibition of applying new laws retroactively to punish individuals for acts that were not considered illegal at the time they were committed.

Article 13: Protection against double punishment: also known as protection against double jeopardy, is a fundamental legal principle that prevents an individual from being tried or punished twice for the same offense.

Article 14: Inviolability of dignity of man, etc: guarantees the inviolability of the dignity of individuals, emphasizing the right to privacy and protection against torture or degrading treatment.

Article 15: Freedom of movement

Article 16: Freedom of Assembly

Article 17: Freedom of Association

Article 18: Freedom of Trade, Business or Profession.

Article 19: Freedom of speech, etc:

Article 19-A: Right of Information

Article 20: Freedom to profess religion and to manage religious institutions.

Article 21: Safeguard against taxation for purposes of any particular religion.

Article 22: Safeguard as to educational institutions in respect of religion etc.

Article 23: Provisions as to property.

Article 24: Protection of property rights

Article 25: Equality of citizens: ensures equality of citizens before the law and prohibits discrimination on the basis of race, religion, caste, sex, or place of birth. It promotes equal opportunities and access to public places.

Article 25-A: Right to Education, is a fundamental human right recognized by various international agreements, including the Universal Declaration of Human Rights and the International Covenant on Economic, Social, and Cultural Rights, the state shall provide free and compulsory education to all children of the age of five to sixteen years in such manner as may be determined by law.

Article 26: Non-discrimination in respect of access to public places, is a fundamental principle that ensures equal treatment and accessibility for all individuals, regardless of their race, ethnicity, religion, gender, age, disability, or any other characteristic.

Article 27: Safeguard against discrimination in services: prohibits discrimination in services, ensuring that no citizen shall be discriminated against in the provision of public facilities or employment opportunities on the basis of race, religion, caste, sex, or place of birth.

Article 28: Preservation of language, script, and culture

Article 29-40: Principles of policy. These articles outline the basic principles that government should follow to promote welfare of the people.

Civic Responsibilities and Duties

Civic responsibilities and duties are the obligations that a citizen must fulfill to contribute positively to their society and ensure the smooth functioning of the government and social systems. They go beyond personal rights and focus on collective actions that support the nation.

Key Civic Responsibilities and Duties such as

Obeying the Law

Voting in elections

Obeying laws

Paying taxes

Serving on a jury when called,

Staying informed about current events, participating in community activities,

Respecting the rights of others,

Protecting the environment

Volunteering time to support local causes

Ethical Considerations in Civic Engagement

Ethical considerations in civic engagement refer to the moral principles or guidelines that shape how citizens should participate in their community and political activities. These ethics help people behave responsibly, respectfully, and fairly when they engage in discussions, decisions, and actions that affect their society. By following these ethical guidelines, people can make sure their involvement benefits the community and promotes peace and justice.

Ethical considerations in civic engagement are about making sure that people act responsibly and morally when they participate in community activities, political processes, or public discussions. The primary focus is on ensuring respectful and inclusive participation, transparent communication, proper informed consent, prioritizing community needs, minimizing potential harm, and upholding principles of justice and equity when engaging with communities to address public issues, all while respecting individual and collective agency within the process.